

22STCV22815 22STCV22815

County: los-angeles

Division: Civil Law and Motion

Department: 735

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Case Number: 22STCV22815 Hearing Date: August 28, 2026 Dept: 735

Richard

Lopez v. Rafael David Miranda, et al.

Cross-Complainant Rafael David

Miranda's Motion to Set Aside and Vacate Judgment Issued on October 18, 2024,

Pursuant to CCP § 473(d)

Plaintiff

Richard Lopez ("Plaintiff") filed this action on July 14, 2022, against

Defendant Rafael David Miranda ("Miranda") asserting three causes of action:

(1) Quiet Title; (2) Slander of Title; and (3) Cancellation of Instrument. Miranda now seeks to set aside and vacate the summary judgment entered on October 18, 2024.

REQUEST FOR JUDICIAL NOTICE

The

court takes judicial notice under Evidence Code section 452 subdivisions (c) and (d) of official acts and the contents of its files.

LEGAL STANDARD

"The

court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order." (Code Civ. Proc., § 473, subd. (d).)

DISCUSSION

Miranda

moves the court to grant his motion to set aside and vacate the summary judgment issued on October 18, 2024. Miranda argues that the summary judgment should be set aside on the ground that when initiating this action, plaintiff failed to serve the summons and complaint upon additional co-trustees and co-beneficiaries of "Rafael David Miranda's Irrevocable Trust Dated May 21, 2022." Miranda argues that the Court incorrectly granted summary judgment because triable issues of material facts existed when plaintiff failed to serve additional parties with the summons and complaint.

Miranda

has not shown any clerical error but is instead attempting to relitigate the summary judgment. The Court signed the judgment and directed the judgment's entry. That Plaintiff failed to initiate this action against other parties that Miranda deems necessary is not a clerical error for which section 473(d) provides a remedy.

CONCLUSION

The

Court denies Cross-Complainant Rafael David Miranda's motion to set aside and vacate the judgment entered on October 18, 2024.

Plaintiff is ordered to give notice of this ruling.